the Rule, such a judgment of acquittal plainly concludes a pending prosecution in which jeopardy has attached, following the introduction at trial of evidence on the general issue. In that circumstance we hold that "although retrial is sometimes permissible after a mistrial is declared but no verdict or judgment has been entered, the verdict of acquittal foreclosed retrial and thus barred appellate review." *United States* v. *Wilson*, 420 U. S., at 348.

Affirmed.

MR. JUSTICE REHNQUIST took no part in the consideration or decision of this case.

MR. JUSTICE STEVENS, concurring in the judgment.

There is no statutory authority for a Government appeal from a judgment of acquittal in a criminal case. The plain language of 18 U. S. C. § 3731, together with its unambiguous legislative history, makes it perfectly clear that Congress did not authorize—and did not intend to authorize—appeals from acquittals.[1]

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[1] The contrary dictum in *United States* v. *Wilson*, 420 U. S. 332, 336–339; *United States* v. *Jenkins*, 420 U. S. 358, 363–364; *Serfass* v. *United States*, 420 U. S. 377, 383–387, is not controlling for these reasons: First, the statutory issue was not in dispute in any of those cases. Two of the defendants expressly conceded the applicability of the statute in their cases, Brief for Respondent in *United States* v. *Wilson*, O. T. 1974, No. 73–1395, p. 2; Brief for Respondent in *United States* v. *Jenkins*, O. T. 1974, No. 73–1513, p. 10. The third defendant simply failed to address the statutory issue, see Brief for Petitioner in *Serfass* v. *United States*, O. T. 1974, No. 73–1424, probably because his case involved a pretrial dismissal of the indictment. Hence, the Court was unaided by an adversary presentation of the issue. Moreover, re-examination of the language used in the decisions would not undermine their holdings. The two cases in which the Court upheld the Government appeal clearly did not involve acquittals on the merits. (*Serfass* was a pretrial dismissal; *Wilson* was a dismissal on speedy trial grounds.) The third case, *Jenkins*,